

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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IRVIN SUMMERS,

Plaintiff,

-against-

POLICE OFFICER CASSANDRA JAMES, Shield No. 31612, DETECTIVE ANDREW PRENDERGAST, Shield No. 8396, DETECTIVE SPATARO, Shield No. 31616, POLICE OFFICER EHTASHAM KHAN, Tax No. 945878, SERGEANT ADAN MUNOZ, Tax No. 935372 and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 4, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER CASSANDRA JAMES, Shield No. 31612, Brooklyn North
Narcotics, 1 Police Plaza, Room 1100, NY, NY
DETECTIVE ANDREW PRENDERGAST, Shield No. 6396, Brooklyn North Narcotics,
1 Police Plaza, Room 1100, NY, NY
DETECTIVE SPATARO, Shield No. 31616, Brooklyn North Narcotics, 1 Police Plaza,
Room 1100, NY, NY
POLICE OFFICER EHTASHAM KHAN, Tax No. 945878, Brooklyn North Narcotics, 1
Police Plaza, Room 1100, NY, NY
SERGEANT ADAN MUNOZ, Tax No. 935372, Brooklyn North Narcotics, 1 Police
Plaza, Room 1100, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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IRVIN SUMMERS,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

POLICE OFFICER CASSANDRA JAMES, Shield No. 31612, DETECTIVE ANDREW PRENDERGAST, Shield No. 8396, DETECTIVE SPATARO, Shield No. 31616, POLICE OFFICER EHTASHAM KHAN, Tax No. 945878, SERGEANT ADAN MUNOZ, Tax No. 935372 and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, IRVIN SUMMERS, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about January 4, 2014, at approximately 10:30 a.m., plaintiff Irvin Summers while lawfully walking in the vicinity of 58 Lewis Avenue, Brooklyn, New York, was subjected to an unlawful, stop, question, frisk, and search, an unlawful seizure and detention, false arrest and false imprisonment by the individually named defendant New York City Police Officers. Plaintiff was deprived of his constitutional and common law rights when the individually named defendant police officers unlawfully stop, questions, frisked, searched, and falsely arrested and imprisoned in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Irvin Summers is a resident of the State of New York.

3. POLICE OFFICER CASSANDRA JAMES, Shield No. 31612, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER CASSANDRA JAMES, Shield No. 31612, is and was at all times relevant herein, assigned to a police precinct.

5. POLICE OFFICER CASSANDRA JAMES, Shield No. 31612, is being sued in her individual and official capacities.

6. DETECTIVE ANDREW PRENDERGAST, Shield No. 6396, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE ANDREW PRENDERGAST, Shield No. 6396, is and was at all times relevant herein, assigned to a police precinct.

8. DETECTIVE ANDREW PRENDERGAST, Shield No. 6396, is being sued in his individual and official capacities.

9. DETECTIVE SPATARO, Shield No. 31616, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. DETECTIVE SPATARO, Shield No. 31616, is and was at all times relevant herein, assigned to a police precinct.

11. DETECTIVE SPATARO, Shield No. 31616, is being sued in his individual and official capacities.

12. POLICE OFFICER EHTASHAM KHAN is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER EHTASHAM KHAN, is and was at all times relevant herein, assigned to a police precinct.

14. POLICE OFFICER EHTASHAM KHAN, is being sued in his individual and official capacities.

15. SERGEANT ADAN MUNOZ is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. SERGEANT ADAN MUNOZ, is and was at all times relevant herein, assigned to a police precinct.

17. SERGEANT ADAN MUNOZ, is being sued in his individual and official capacities.

18. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

24. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

25. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

26. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

27. THE CITY OF NEW YORK held a 50(H) hearing examination of the Plaintiff on March 25, 2014.

STATEMENT OF FACTS

28. On or about January 4, 2014, at approximately 10:30 a.m., plaintiff Irvin Summers was lawfully walking in the vicinity of 58 Lewis Avenue, Brooklyn, New York.

29. Without legal justification, reasonable suspicion, or probable cause, the defendant police officers unlawfully approached plaintiff, physically grabbed him, and threw him up against a wall.

30. The defendant police officers then unlawfully searched plaintiff without reasonable suspicion, probable cause or any legal justification.

31. Notably, the defendant police officers did not recover any drugs, guns, or contraband of any kind from plaintiff's person or from a location within plaintiff's possession, custody or control.

32. At no point in time did the defendant police officers have any legal justification or probable cause to believe that plaintiff committed any crime.

33. Nevertheless, the defendant police officers handcuffed plaintiff and arrested plaintiff without legal justification or probable cause.

34. Plaintiff was then transported to the 81st precinct.

35. Plaintiff was unlawfully fingerprinted and photographed by the defendant police officers at the 81st Precinct.

36. The defendant police officers provided the Kings County District Attorney's Office with false, misleading, and/or incomplete information regarding their basis for arresting plaintiff and accusing him of possessing a controlled substance.

37. Plaintiff was detained for several hours at the 81st Precinct and then he was transported to Kings County Central Booking where he was detained in filthy and unsanitary holding cells with individuals accused of committing serious crimes.

38. Plaintiff was arraigned in Brooklyn Criminal Court on January 4, 2014, approximately 12 hours after he was initially detained by the police officers and released from custody.

39. Thereafter, on January 2, 2015 all charges against plaintiff were dismissed and sealed.

40. Some of the police officer defendants observed the violations of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful stop, question, frisk, search and false imprisonment and false arrest of plaintiff.

41. The unlawful stop, question, frisk, search, false arrest and false imprisonment of plaintiff by the individually named defendant police officers caused him to sustain severe physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, damaged plaintiff's property after they unlawfully seized the property and caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested and imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

52. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

59. Defendants lacked probable cause to search plaintiff.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 63 with the same force and effect as if fully set forth herein.

65. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

66. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

67. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

68. In withholding/creating false evidence against plaintiff Irvin Summers and in providing/withholding information with respect thereto, defendants violated plaintiff's

constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

69. As a result of the foregoing, plaintiff Irvin Summers, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Failure to Intervene

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

78. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Irvin Summers demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 4, 2017

By: /s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER CASSANDRA JAMES, Shield No. 31612, Brooklyn North
Narcotics, 1 Police Plaza, Room 1100, NY, NY
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Police Plaza, Room 1100, NY, NY
SERGEANT ADAN MUNOZ, Tax No. 935372, Brooklyn North Narcotics, 1 Police
Plaza, Room 1100, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 4, 2017

_____/s/_____
STUART E. JACOBS